

BITSMUN 2025

BACKGROUND GUIDE

CONSTITUENT ASSEMBLY OF INDIA



AGENDA 1: Debating the Inclusion of Article 370: A Necessary Compromise or a Flaw in Nation-Building

AGENDA 2: Determining India's Economic Model: Should India Have Adopted a Free Market Instead of Socialist Planning?

Letter from the Executive Board

Esteemed Delegates,

It is with great honor that we welcome you to the **Constituent Assembly of India** at **BITS MUN**. This committee is not just a simulation of historical debates; it is an opportunity for you to **step into the minds of the framers of the Indian Constitution**, engaging with the same dilemmas, conflicts, and aspirations that shaped the nation's future. The Constituent Assembly was a forum of **intense deliberation, compromise, and visionary leadership**—and we expect no less from you as you take on this responsibility.

This committee invites you to assess whether ****Article 370**** was a necessary safeguard for Jammu & Kashmir's accession or a hurdle to national unity, while also debating if ****socialist planning**** ensured stability or hindered India's economic growth compared to a free-market approach. We encourage you to approach these debates with **thorough research, analytical depth, and intellectual curiosity**. Do not limit yourself to predetermined viewpoints—challenge conventional narratives, question historical decisions, and propose alternative perspectives.

As your Executive Board, we are committed to ensuring that this committee is a **dynamic, engaging, and thought-provoking experience**. We look forward to witnessing **spirited discussions, strategic diplomacy, and well-reasoned policymaking**. Best of luck, and may this conference be an enriching journey for you all!

Warm Regards,
Rashi Aggarwal
Executive Board, Constituent Assembly of India
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1. Introduction

The **Constituent Assembly of India**, formed in **1946**, was tasked with drafting the **Indian Constitution** and shaping the **political and economic future of the nation**. This committee had to make crucial decisions regarding **federalism, national unity, governance structures, and economic policy**, many of which continue to shape modern India.

Two of the most significant debates that took place within the Assembly were:

1. **The inclusion of Article 370**, which granted special status to **Jammu & Kashmir (J&K)**. While some saw it as a necessary compromise to secure the state's accession, others believed it created long-term challenges for national integration.
2. **The choice between socialist planning and free-market capitalism** as India's economic model. While socialist planning was chosen to ensure self-reliance and equitable distribution, many argue that a free-market system could have led to faster growth and development.

Both these debates are **critical not just in a historical context but also for contemporary India**, as they continue to impact federalism, governance, and economic policies.

Preparation Guidelines for Successful Participation

Before diving into the specific agenda items, consider these essential preparation strategies:

1. **Develop your historical persona:** Research the views, background, and political leanings of your assigned historical figure

2. Balance historical accuracy with creativity: While staying true to historical contexts, be prepared to propose innovative solutions
3. Understand procedural rules: Familiarize yourself with both MUN rules and the historical procedural norms of the Constituent Assembly
4. Prepare comprehensive position papers: Address both agenda items with well-researched arguments reflecting your character's perspective

Agenda 1: Article 370 - Historical Context and Contemporary Relevance

Historical Timeline: Kashmir's Path to Article 370

Date	Event	Significance
August 15, 1947	Indian Independence	Creation of India and Pakistan as independent nations
October 22, 1947	Tribal invasion from Pakistan	Forced Maharaja Hari Singh to seek Indian military assistance
October 26, 1947	Signing of Instrument of Accession	J&K legally acceded to India with conditions
January 1948	India refers Kashmir issue to UN	Internationalization of the Kashmir conflict
October 1949	Article 370 drafted by Constituent Assembly	Created special status for J&K within Indian Union

January 26, 1950	Indian Constitution enacted	Article 370 included as "temporary provision"
1952-1954	Delhi Agreement & Presidential Orders	Extended numerous provisions of Indian Constitution to J&K
August 5, 2019	Abrogation of Article 370	Removal of special status and bifurcation into two Union Territories

Key Political Perspectives on Article 370

Pro-Article 370 Arguments (1949)

- Security and Strategic Necessity: Given the ongoing conflict with Pakistan, autonomy helped secure the loyalty of J&K's population
- Cultural and Religious Protections: The Muslim-majority state required assurances against potential domination
- International Commitments: Promises made to the UN regarding allowing self-determination necessitated special provisions
- Legal Basis in Instrument of Accession: The limited accession terms provided legal justification for autonomy

Anti-Article 370 Arguments (1949)

- National Integration Concerns: Special status could perpetuate separatist sentiments
- Constitutional Uniformity: All states should be governed by the same constitutional framework
- Practical Implementation Challenges: Administrative complexities in maintaining dual systems of governance
- Precedent for Other Regions: Could encourage demands for similar concessions from other states

Critical Analysis Questions for Delegates

1. Was Article 370 truly intended to be "temporary," or was this designation primarily political rhetoric?
2. How might Kashmir's development trajectory have differed without Article 370?
3. Could an alternative constitutional arrangement have better balanced regional autonomy with national integration?
4. What role did international politics (Cold War dynamics, UN involvement) play in shaping India's approach to Kashmir?
5. How did Article 370 impact center-state relations throughout India's federal system?

Profiles of Key Historical Figures

Jawaharlal Nehru (Prime Minister): Strong advocate for Article 370, viewed it as essential for securing Kashmir's accession and honoring promises made to Sheikh Abdullah. Believed in gradual integration.

Sardar Vallabhbhai Patel (Deputy Prime Minister): Initially skeptical but pragmatically accepted Article 370 as a political necessity. Focused on securing the accession of hundreds of princely states.

N. Gopalaswami Ayyangar (Chief Drafter of Article 370): Former Prime Minister of J&K who crafted the legal framework for Article 370, balancing constitutional integration with promises of autonomy.

Sheikh Abdullah (Kashmiri Leader): Supported accession to India but demanded substantial autonomy to protect Kashmir's distinct identity and interests.

B.R. Ambedkar (Chairman, Drafting Committee): Reportedly expressed reservations about Article 370, preferring greater constitutional uniformity across states.

Comparative Case Studies: Special Status Provisions Globally

- Spain and Catalonia: Limited autonomy for cultural protection with mixed results for national integration
- United Kingdom and Scotland: Devolution of powers within a unitary state
- Canada and Quebec: Linguistic and cultural accommodations within federalism
- China and Hong Kong: "One country, two systems" approach to integration

Agenda 2: Economic Model - Socialist Planning vs. Free Market Capitalism

India's Economic Evolution Timeline

Period	Economic Approach	Key Features and Outcomes

1947-1951	Transition Period	Recovery from colonial exploitation, addressing refugee crisis
1951-1965	Early Planning Era	First three Five-Year Plans, heavy industrialization, state control
1965-1980	Economic Turbulence	Wars, droughts, oil shocks, nationalization wave
1980-1991	Partial Reforms	Limited liberalization under Rajiv Gandhi, mounting crisis
1991-2000	Liberalization	Dismantling License Raj, privatization, opening to global trade
2000-Present	Globalized Mixed Economy	Continued reforms with social welfare emphasis

Competing Economic Visions in 1950

Socialist Planning Approach

- Inspiration: Soviet model, Fabian socialism
- Key Advocates: Jawaharlal Nehru, Planning Commission
- Central Features:
 - Five-Year Plans directing resource allocation
 - Public sector dominance in "commanding heights" of economy

- Import substitution industrialization
- Redistribution of wealth through progressive taxation
- State control of banking and finance

Free Market Alternative

- Inspiration: Western capitalism, classical liberalism
- Key Advocates: C. Rajagopalachari, Minoo Masani, Swatantra Party (formed later)
- Central Features:
 - Private enterprise as primary growth engine
 - Limited government intervention in markets
 - Open trade policies
 - Foreign investment to accelerate development
 - Competitive markets to drive innovation

Economic Performance Comparisons

Metric	Socialist Planning (1950-1990)	Post-Reform Era (1991-2025)
GDP Growth	3.5% annual average ("Hindu rate of growth")	6-8% annual average
Industrial Development	Heavy industry base established but inefficient	Diversified industrial base, global competitiveness
Poverty Reduction	Limited progress (53% to 45% below poverty line)	Significant reduction (45% to below 20%)

Foreign Exchange	Chronic shortages, multiple crises	Substantial reserves, stable management
Global Integration	Limited, insular economy	Substantial global economic presence

Intellectual Frameworks for Economic Decision-Making

Nehruvian Socialism

- Key Principle: State-led development to overcome colonial underdevelopment
- Theoretical Base: Mix of Fabian socialism, Soviet planning, and modernization theory
- Economic Goals: Self-reliance, industrial base, reduced inequality

Market Liberalism

- Key Principle: Economic freedom drives innovation and efficiency
- Theoretical Base: Classical economics, comparative advantage theory
- Economic Goals: Growth maximization, poverty reduction through prosperity

2. Agenda 1: Debating the Inclusion of Article 370 – A Necessary Compromise or a Flaw in Nation-Building

2.1 Historical Context and Accession of Jammu & Kashmir

Before 1947, **Jammu & Kashmir (J&K)** was a princely state ruled by **Maharaja Hari Singh**. As India and Pakistan gained independence, princely states had the option to:

- Join **India or Pakistan**, or
- Remain **independent** (though strongly discouraged by the Indian leadership).

Maharaja Hari Singh **delayed his decision**, hoping to maintain an independent status, but the situation took a drastic turn when **Pakistani tribal forces invaded J&K in October 1947** (Operation Gulmarg). In response, the Maharaja sought India's help and signed the **Instrument of Accession (IoA) on October 26, 1947**, bringing J&K under India's control in matters of **defense, foreign affairs, and communications**. However, the **political sensitivities** surrounding J&K's status led to the drafting of **Article 370**.

2.2 The Drafting and Inclusion of Article 370

Article 370 was drafted by **Gopalaswami Ayyangar**, a close advisor to **Prime Minister Jawaharlal Nehru**. The purpose was to **accommodate the unique circumstances** of J&K's accession while acknowledging the **ongoing conflict with Pakistan** and the **aspirations of Kashmiri leadership**.

The provision was placed under **Part XXI (Temporary and Transitional Provisions)** of the Indian Constitution, signifying that it was meant to be a **temporary arrangement** until the situation stabilized. However, it remained in effect for decades, shaping J&K's relationship with the Indian Union.

Key Provisions of Article 370:

- **Autonomy for J&K:** The state had its own **Constitution and decision-making powers** in all matters except defense, foreign affairs, and communications.
 - **Limited jurisdiction of the Indian Parliament:** Laws passed by Parliament applied to J&K **only if the state government consented**.
 - **Emergency provisions:** Unlike other states, emergency powers in J&K required the state government's concurrence.
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2.3 Debates in the Constituent Assembly on Article 370

The inclusion of **Article 370** sparked **intense debate** in the Constituent Assembly, with opinions sharply divided.

Arguments in Favor of Article 370

- **A necessary compromise:** Some believed Article 370 was **essential to secure J&K's accession** and prevent further conflict.
- **Preserving Kashmiri identity:** Autonomy was seen as a way to **protect the unique cultural and religious fabric** of J&K.
- **Strategic importance:** Given the **ongoing tensions with Pakistan**, granting autonomy was viewed as a **political necessity** to maintain stability.

Arguments Against Article 370

- **A threat to national unity:** Critics argued that **granting special status** to one state would encourage **separatist tendencies** in other regions.
 - **Undermining Indian federalism:** The provision **contradicted the principle of uniform governance** across all states.
 - **Long-term complications:** Many believed the provision, even if temporary, **would create political and legal challenges in the future**.
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2.4 Legal and Constitutional Aspects of Article 370

Despite being labeled "**temporary**," Article 370 remained in force for over 70 years, leading to legal and constitutional debates regarding its permanence.

- **The 1954 Presidential Order** extended several Indian laws to J&K but reaffirmed its special status.
 - **The Supreme Court of India** ruled on multiple occasions that Article 370 was **not justiciable without constitutional amendment**.
 - **The 2019 Revocation:** The Indian government used a **Presidential Order** to revoke J&K's special status, triggering legal and political controversies.
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2.5 Impact of Article 370 on Indian Federalism and Nation-Building

- **Created an unequal relationship:** J&K had special privileges not available to other states, leading to debates about federalism.
 - **Limited economic development:** The restrictions on land ownership and investment hindered industrialization in the region.
 - **Contributed to political instability:** The **separatist movement and insurgency** in J&K were often linked to its special status.
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2.6 The Revocation of Article 370 and its Aftermath

- **Revoked on August 5, 2019,** through a Presidential Order.
 - **J&K was bifurcated into two Union Territories (J&K and Ladakh).**
 - **Mixed reactions across the country and internationally,** with Pakistan opposing the move while many Indian policymakers hailed it as a step towards national unity.
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2.7 Key Issues

- **Integration vs. Autonomy:** Did Article 370 promote national unity or encourage separatist tendencies?
 - **Governance and Development:** Did the special status hinder economic progress, or was it essential for preserving regional identity?
 - **Security Concerns:** Did Article 370 contribute to or mitigate insurgency and unrest in J&K?
 - **Legal and Constitutional Validity:** Was the abrogation of Article 370 constitutionally justified or an overreach of central power?
 - **Impact on Federalism:** Does the removal of J&K's autonomy set a precedent for altering other states' special provisions?
 - **International Dimensions:** How did Pakistan, China, and global organizations influence the discourse around Article 370?
 - **Human Rights and Civil Liberties:** Has the revocation improved governance or led to restrictions on freedoms in the region?
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Agenda 2: Determining India's Economic Model – Should India Have Adopted a Free Market Instead of Socialist Planning?

3.1 India's Economic Situation Post-Independence

At the time of **India's independence in 1947**, the country faced severe economic challenges. The colonial economy had left India with **poor infrastructure, low industrial output, high unemployment, and widespread poverty**. Agriculture, the backbone of the economy, suffered from **low productivity and outdated techniques**. Additionally, the **Partition of India** disrupted trade and displaced millions, exacerbating economic instability.

The primary concerns for Indian policymakers were:

- **Economic self-sufficiency** to reduce dependence on foreign powers.
- **Reducing income inequality** by addressing the stark wealth gap between rural and urban populations.
- **Industrialization** to create jobs and modernize the economy.

The choice between **socialist planning** and a **free-market system** became central to India's economic debates.

3.2 Socialist Planning: The Chosen Path and Its Justifications

India adopted a **socialist-inspired planned economy**, largely influenced by **Jawaharlal Nehru's vision** and the Soviet Union's economic model. The idea was that **state-controlled industrialization and economic planning** would lead to **equitable growth and social justice**.

Key Features of India's Socialist Model

- **The Five-Year Plans (1951-1991)**: Modeled after the Soviet Union, these plans set targets for economic growth and government-controlled industries.
- **Public Sector Dominance**: Key industries such as steel, coal, aviation, and telecommunications were **nationalized** to prevent private monopolies.
- **The License Raj**: A complex system of permits and regulations controlled private enterprises, restricting economic freedom.
- **Land Reforms**: Attempts were made to redistribute land and eliminate the **zamindari system** to improve rural equity.

The **rationale behind this approach** was that market forces alone could not solve India's economic disparities, and **state intervention** was necessary to achieve **balanced growth**.

3.3 The Free Market Alternative: A Missed Opportunity?

Some leaders, such as **B.R. Ambedkar** and **C. Rajagopalachari**, advocated for a **more market-oriented approach**, believing that excessive government control could **stifle innovation and entrepreneurship**.

Potential Benefits of a Free Market Model

- **Faster Industrial Growth:** Allowing private sector expansion could have **accelerated industrialization**.
- **Foreign Investment:** A more open economy might have attracted **foreign capital and technology**.
- **Reduced Bureaucratic Corruption:** Without excessive regulations, inefficiencies created by the **License Raj** could have been avoided.

Critics of socialist planning argue that India's initial economic approach **delayed its rise as a global economic power**, forcing eventual reforms in 1991.

3.4 Debates in the Constituent Assembly on Economic Policy

The **Constituent Assembly** witnessed **intense debates** on the role of the state in economic affairs.

Arguments in Favor of Socialist Planning

- **State control prevents exploitation:** A free market could have led to the **concentration of wealth in a few hands**, worsening inequality.
- **Public sector as the driver of progress:** Heavy industries were too risky for private investors, so the state had to lead.
- **Need for economic sovereignty:** Depending on private enterprise or foreign investment could **threaten India's autonomy**.

Arguments Against Socialist Planning

- **Bureaucracy stifles innovation:** Overregulation could reduce **economic efficiency and productivity**.
- **Private sector can drive growth:** Entrepreneurs, if given freedom, could **accelerate industrialization faster than state planning**.
- **Socialism delays global integration:** Countries like **South Korea and Japan**, which embraced free markets, achieved rapid development.

The debates reflected a **fundamental question**: Should India focus on **self-reliance and state-led planning**, or should it embrace a **competitive, market-driven economy**?

3.5 Impact of Socialist Planning vs. Free Market Approach

Impact of Socialist Planning (1950-1991)

- **Slow GDP Growth:** India experienced the so-called "**Hindu Rate of Growth**" (3.5% annually), far below global standards.
- **High Government Control:** The state played a dominant role, often leading to **inefficiencies and bureaucratic hurdles**.
- **Limited Global Trade:** Protectionist policies kept India **isolated from the global economy**, reducing competitiveness.

Impact of a Free Market Economy (Post-1991)

- **Higher Growth Rates:** Post-liberalization, India's GDP growth increased to **6-8% annually**.
- **Foreign Investment Surge:** Liberalization attracted **multinational companies and foreign direct investment (FDI)**.
- **Technological and Industrial Growth:** India became a major player in **IT, telecommunications, and pharmaceuticals**.

The **economic transformation of 1991** demonstrated the **potential benefits of free-market reforms**. However, questions remain about **whether India should have adopted these policies earlier**.

3.6 Economic Reforms of 1991: A Shift Towards Free Market Policies

By the late 1980s, India faced an **economic crisis**, with **foreign exchange reserves depleting and rising fiscal deficits**. In 1991, the government, led by **Prime Minister P.V. Narasimha Rao and Finance Minister Dr. Manmohan Singh**, implemented **market-friendly reforms** to open up the economy.

Key Reforms

- **Liberalization:** Removal of the **License Raj**, reducing bureaucratic control over businesses.
- **Privatization:** Selling of **government-owned enterprises** to improve efficiency.
- **Globalization:** India opened its economy to **foreign investors and international trade**.

The **1991 reforms** marked a **turning point**, showing that **free-market policies** could drive economic prosperity. The question remains: should India have pursued these reforms **much earlier**?

3.7 Key Issues for Debate

- **Was socialist planning the best choice for post-independence India?**
 - Given India's challenges in 1947, was **state-led economic planning the most effective approach**, or did it limit India's potential for faster growth?
- **Did socialist policies delay India's economic growth?**
 - Did the **License Raj and excessive government control** hinder India's industrial and entrepreneurial growth?
- **Would a free market have reduced poverty faster?**
 - Could India have reduced poverty more effectively by **embracing capitalism earlier**, like South Korea and Japan did?
- **Did India's mixed economy strike the right balance?**
 - The mixed economy combined **socialist and capitalist elements**. Was this approach successful, or did it create inefficiencies?
- **How did socialist policies impact inequality?**
 - Did state-led economic planning help **reduce economic inequality**, or did it **fail to uplift marginalized communities**?
- **Was India's self-reliance strategy successful?**
 - Did India's focus on **import substitution and domestic industries** strengthen the economy, or did it **isolate the country from global progress**?
- **Could India have transitioned to a free-market economy earlier?**
 - Would an **earlier shift to capitalism** (e.g., in the 1960s or 1970s) have prevented India's economic stagnation?

- **Did the 1991 reforms prove that socialism was a mistake?**
 - The shift to a free market in 1991 led to rapid growth. Does this mean **India should never have pursued socialist planning**?
- **What were the political challenges in shifting to a free market?**
 - Why did **Indian leaders resist market reforms** for so long, and what political pressures influenced economic decisions?
- **How does India's economic model influence policy today?**

Given India's **current economic trajectory**, should it move further toward capitalism, or is there still a need for **state intervention**?

4. Conclusion

The Constituent Assembly's decisions on **Article 370** and **India's economic model** shaped the nation's trajectory for decades. **Article 370** was seen by some as a **necessary compromise** for Jammu & Kashmir's accession, while others viewed it as a **flaw in national integration**—a debate that continues, especially after its **revocation in 2019**.

Similarly, India's choice of **socialist planning** aimed at **self-sufficiency and social justice**, but it also led to **economic stagnation**, necessitating the **1991 liberalization reforms**. This raises a key question: should India have **embraced free-market policies earlier**, or was state control essential for stability?

Both debates highlight the **complex challenges of nation-building**, where leaders had to balance **unity, governance, and economic growth**. As members of the **Constituent Assembly**, delegates must critically evaluate these choices and their lasting impact on India's **political and economic landscape**.